

**TELECOMMUNICATIONS RIGHT-OF-WAY LICENSE AND USE AGREEMENT
BETWEEN VIAERO FIBER NETWORKS, LLC
AND THE CITY OF CHEYENNE**

1. Parties. The parties to this Agreement are Viaero Fiber Networks, LLC, whose address is 1224 West Platte Ave., Fort Morgan, Colorado 80701 (“Company”), and the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming, whose address is 2101 O’Neil Avenue, Cheyenne, Wyoming 82001 (“City”).
2. Purpose of Agreement. To permit the Company’s limited use of the public right-of-way in the Public Right-of-Way Area for the installation and operation of Facilities in accordance with this Agreement. For the purposes of this Agreement only, the terms below are defined as follows:
 - a. The term “City” means the City of Cheyenne, Wyoming, a municipal corporation organized under the laws of the State of Wyoming.
 - b. The term “Company” means the entity named above which is authorized to do business in the State of Wyoming.
 - c. The term “Communications Services” means terrestrial based transport and delivery of electronic communications and includes telecommunication services and internet services.
 - d. The term “Existing Installations” means Facilities installed previously to the Effective Date of this Agreement. Existing Installations are identified in Exhibit A, attached to this Agreement and incorporated herein by this reference.
 - e. The term “Facilities” means the Company conduits, raceways, cables, fiber, hand holes (vaults), pedestals, cabinets, and any and all other appurtenances which make up a fiber optic communication systems, which are or will be installed at locations specified in a permit application within the Public Right-of-Way Area.
 - f. The term “New Installations” means Facilities installed after the Effective Date of this Agreement.
 - g. The term “Street” means the entire width between the boundary lines of every way dedicated to the public use, and publicly maintained for the purposes of vehicular travel, including alleys.
 - h. The term “Public Right-of-Way Area” means the limited geographic areas where the Company is authorized to use the City’s public right-of-way pursuant to permits authorized by the City in accordance with Chapters 12.04 and 12.12 of the Cheyenne City Code. The City Engineer may refuse to authorize a permit for any reason.

3. Term of Contract and Required Approvals. This Agreement is effective upon the signature date of the last party ("Effective Date). The Term of the Agreement is five (5) years from the Effective Date. This Agreement may be renewed by the Company upon terms that are mutually agreeable to the Company and the City. Renewal of the Agreement will not be effective unless it is in writing approved by the Governing Body of the City of Cheyenne. The Company may begin renewal of this Agreement six (6) months prior to the expiration date.
4. Payment. The Company agrees to pay the City the following fees for the duration of the Term, and any renewal thereof, for the use of the City's public right-of-way for the Company's Facilities:
 - a. All standard permitting fees for plan review, permitting and construction as required by Chapters 12.04 and 12.12 of the Cheyenne City Code.
 - b. An annual seventy-five cents (\$.75) per linear foot of conduit or related Facility in the Public Right-of-Way Area ("Use Fee"), due beginning January 1, 2025, for all Existing Installations. The Use Fee for New Installations shall be due once as-builts are completed pursuant to Section 5(g) and shall thereafter be payable on an annual basis of seventy-five cents (\$.75) per linear foot of conduit or related Facility in the Public Right of Right-of-Way Area commencing on the first day of January following the initial installation.
 - c. The fees outlined in this Section 4 are the exclusive fees for the Company's use of the City's public right-of-way for the installation, operation and use of Facilities within the Public Right-of-Way Area, and no other fees shall be assessed to the Company or are due from the Company for the Company's use of the City's right-of-way. The fees outlined in this section are intended to be in lieu of the Company obtaining a franchise and paying franchise fees.
 - d. Company does not waive it rights under state and federal law, both now and in the future.
5. Responsibilities of Company.
 - a. The Facilities shall be located, constructed and maintained so that none of the Facilities shall endanger the lives or property of the City or its citizens; or interfere with any improvements within the City; or hinder or obstruct the free use of streets by the public. In the event the Company determines it is necessary to dig, or in any manner disturb or interfere with any City Street(s), the Company shall immediately upon completion, at its own expense, replace and restore the Street(s) in accordance with standards for such work set by City Code and by the City Engineer. In the event any Street(s) become uneven, unsettled or otherwise require repair due to disturbance by the Company, as determined solely by the City Engineer, the Company shall immediately repair or restore the Street(s) in compliance with the ordinances and standards of the City at the Company's expense.

- b. The Company agrees and understands that if the City determines it is necessary to make public improvements in or upon any City Street(s) or City land including, but not limited to, altering the grade of any Street(s), and such public improvements are inconsistent with the continued presence of the Company's facilities at that location in the right-of-way, the Company shall, at its own expense, either abandon in place if authorized by the City Engineer, or remove and relocate its facilities and restore the Street(s) in accordance with standards for such work set by City Code and by the City Engineer. The Company shall not place fixtures that interfere with any other utility. The Company agrees that the City Engineer may impose reasonable time limits, or reasonably limit the time period during which the Company may construct, locate, repair or maintain its Facilities in Streets. Nothing in this section is intended nor should be construed to prevent the Company from performing necessary repairs in the event of an emergency. Street(s) closure must be approved by the City Engineer.
- c. The Company shall notify the City Engineer of all substantial repairs or replacement of existing Facilities including repairs or replacement within or under unimproved or future City Streets. In addition, the Company shall, at its expense, provide the City with a plan for significant repairs or replacement of existing Facilities including repairs within or under unimproved or future City Street(s) at least thirty (30) days prior to commencement of the repair or replacement, except in the event of an emergency repair requirement, in which the Company shall notify and work with the City Engineer to promptly address such repairs. Facilities being installed under improved City Street(s) shall be pushed or bored under the Street(s) unless previously approved by the City Engineer's Office. The Company shall, when working in any City Street(s), use the appropriate warning signs, in accordance with the current edition of the Manual on Uniform Traffic Control Devices, and any other applicable local, state or federal law. In the event a City Street(s) is not completely repaired at the conclusion of a working day, the Company shall perform all cleanup work and erect and monitor signage, approved by the City Engineer's Office, that is adequate to provide notice to the public of the condition of the Street(s).
- d. Any Street opening made or installation or repair of Facilities shall be closed within a maximum of five (5) working days of the making of the opening; and said opening shall be permanently repaired and resurfaced to City standards, unless the City Engineer's Office grants a time extension. In any event, said Street opening shall be subject to permit approval by the City Engineer's Office in accordance with any ordinance regulating the same during the term of this Agreement. In the event the Company shall fail to close any Street opening within the maximum period specified herein, upon notice to the Company and an opportunity to cure, the City shall be, and hereby is, authorized by the Company to repair and resurface the street opening; and the Company agrees to pay all reasonable and documented costs incurred by the City in doing the same upon demand of the City within thirty (30) days after Company's receipt of the City's invoice. In the reasonable discretion of the City, and prior to opening a Street, the Company shall deposit cash or post bond in lieu thereof with the City the sum of Five Thousand Dollars (\$5,000.00) to be

used in the event Company fails to close said Street within a reasonable time to a condition satisfactory to the City Engineer's Office within the time specified. Upon the failure of the Company to close a Street opening in the time specified, for failure to make such cash deposit or post bond when notified by the City Engineer's Office to do so, or both, the City may, in its reasonable discretion, refuse any permit or permits thereafter required to be issued or obtained for the opening of any Street(s) in the City.

- e. The Company understands and agrees that the Company may provide a Representative to observe work by the City or others in the vicinity of the Company's facilities, however, the inability of the Company to provide an inspector shall not preclude the City, its contractors, agents, permittees or employees from working in the vicinity of the Company's facilities.
- f. The Company shall comply with the Wyoming Underground Facilities Notification Act, Wyo. Stat. §§ 37-12-301 - 306 in its entirety.
- g. The Company shall provide at no cost to the City accurate as-built maps to the City Engineer's Office within ninety (90) days of the completion of any Facilities installation and shall perform the work required to locate its System. All maps shall be presented digitally either in an AutoCAD or ArcView format. All data shall be layered to allow for identification of disparate systems, for example, fiber vaults from conduit raceways and above ground from underground facilities. All data shall include raceway number, fiber vault identification numbers and size, installation year, conduit size, type and approximate elevations. All data presented shall be in a projection system and datum recognized by AutoCAD or ArcView or be presented in Wyoming NAD 83, State Plane, East Zone, Feet Units. Updated maps shall be provided within ninety (90) days of making any change to the Facilities affecting the accuracy or completeness of the originally provided maps or data. The parties acknowledge excavators should not rely exclusively upon maps provided pursuant to this section to locate Company's Facilities and for excavation purposes. The provisions of Wyo. Stat. § 37-12-301, *et seq.*, remain applicable to accurately locate Company's Facilities.
- h. The Company agrees and understands that this Agreement is not a franchise agreement. These Agreement terms are limited to the installation and operation of Facilities within the Public Right-of-Way Area authorized by the City, if any.
- i. All Company Facilities shall comply with the City Code in effect at the time of the commencement of construction. The Company acknowledges that its rights hereunder are subject to the police power of the City to adopt and enforce general ordinances necessary to the safety and welfare of the public; and it agrees to comply with all applicable general laws and ordinances enacted by the City pursuant to such power. Any conflict between the provisions of this Agreement and any other present or future lawful exercise of the City's police power shall be resolved in favor of the latter.

- j. The Company agrees and understands that when working in any public right-of-way, the Company shall comply with the current City Code.
 - k. The Company shall submit new construction designs to the City Engineer's Office for approval. Designs shall meet City construction standards, unless an alternate design is approved in writing by the City Engineer's Office. The Company may not directly bury fiber optic cables via street cuts, unless prior written approval is received from the City Engineer's Office. Once the Company has installed raceways or conduits, then the Company may pull/install unlimited fiber pairs within one or more of the raceways.
 - l. The Company may install Facilities only with the prior written approval of the City Engineer, or his or her designee, pursuant to the issuance of the right-of-way encroachment permits in all circumstances provided for under Chapters 12.04 and 12.12 of the Cheyenne City Code.
6. Responsibilities of City.
- a. Upon the effective date of this Agreement, the City grants the Company a license to install and operate Facilities along and within the Public Right-of-Way Area in the City of Cheyenne, Wyoming, for the Term of the Agreement.
 - b. The City shall comply with its obligations under Wyoming Underground Facilities Notification Act, Wyo. Stat. §§ 37-12-301 - 306 (2017).
7. General Provisions.
- a. Amendments. Any changes, modifications, revisions or amendments to this Agreement which are mutually agreed upon by the parties to this Agreement shall be incorporated by written instrument, executed and signed by all parties to this Agreement.
 - b. Applicable Law/Venue. The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming, and the venue for state court litigation shall be the courts of the State of Wyoming, First Judicial District, Laramie County, sitting at Cheyenne, Wyoming.
 - c. Assignment/Agreement Not Used as Collateral. Neither party shall assign or otherwise transfer any of the rights or delegate any of the duties set out in this Agreement without the prior written consent of the other party, such consent not to be unreasonably withheld, conditioned, or delayed. Notwithstanding the preceding, such transfer or assignment may occur without written consent of the City to a wholly owned parent or subsidiary, or between wholly owned subsidiaries, or to an entity with which the Company is under common ownership or control, or to any successor in interest or transferee directly or indirectly holding or acquiring a PCS license or other license for wireless services from the Federal Communications

Commission for the geographic area where the Facilities are located or acquiring the Company's spectrum, upon written notice to the City. The Company shall not use this Agreement, or any portion thereof for collateral for any financial obligation without the prior written permission of the City.

- d. Audit/Access to Records. The City shall have access to any books, documents, papers and records of the Company which are pertinent to this Agreement; provided, however, the City agrees that such books, documents, papers and records will be strictly confidential, and the City will not disclose, disseminate, discuss or correspond concerning such books, documents, papers and records with any person other than the City's counsel or tax or accounting professional(s) or pursuant to a court order or request from a governmental agency.
- e. Certificate of Good Standing. The Company shall provide a Certificate of Good Standing verifying compliance with the unemployment insurance and workers' compensation programs before performing work under this Agreement.
- f. Compliance with Laws. The Company shall keep informed of and comply with all applicable federal, state and local laws and regulations which are pertinent to the Company's performance of this Agreement.
- g. Entirety of Agreement. This Agreement represents the entire and integrated Agreement between the parties and supersedes all prior negotiations, representations, and agreements, whether written or oral.
- h. Force Majeure. Neither party shall be liable for failure to perform under this Agreement if such failure to perform arises out of causes beyond the control and without the fault or negligence of the nonperforming party. Such causes may include, but are not limited to, acts of God or the public enemy, fires, floods, epidemics, pandemics, quarantine restrictions, freight embargoes, and unusually severe weather. This provision shall become effective only if the party failing to perform immediately notifies the other party of the extent and nature of the problem, limits delay in performance to that required by the event, and takes all reasonable steps to minimize delays. This provision shall not be effective unless the failure to perform is beyond the control and without the fault or negligence of the nonperforming party.
- i. Indemnification. The Company shall indemnify, defend and hold harmless the City, and their officers, agents, employees, successors and assignees from any and all claims, lawsuits, losses and liability arising out of Company's failure to perform any of Company's duties and obligations hereunder or in connection with the negligent performance of Company's duties or obligations including, but not limited to, any claims, lawsuits, losses or liability arising out of Company's actions.
- j. Independent Contractor. The Company shall function as an independent contractor for the purposes of this Agreement and shall not be considered an employee of the

City for any purpose. The Company shall assume sole responsibility for any debts or liabilities that may be incurred by the Company in fulfilling the terms of this Agreement and shall be solely responsible for the payment of all federal, state and local taxes which may accrue because of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Company or its agents and/or employees to act as an agent or representative for or on behalf of the City or to incur any obligation of any kind on behalf of the City. The Company agrees that no health/hospitalization benefits, workers' compensation, and/or similar benefits available to City employees will inure to the benefit of the Company or the Company's agents and/or employees as a result of this Agreement.

- k. Notices. All notices arising out of, or from, the provisions of this Agreement shall be in writing and given to the parties at the address provided under this Agreement, either by regular mail, facsimile, e-mail, or delivery in person.
- l. Notice of Proposed Sale or Transfer of the Company. The Company shall provide the City with notice of any sale or transfer or any merger or consolidation of the assets of the Company. The Company will endeavor to provide the City with such notice promptly upon any such sale, transfer, merger, or consolidation, and such notice shall be provided in accordance with the notices provision of this Agreement.
- m. Proof of Insurance.
 - i. Workers' Compensation and Company's Liability Insurance. The Company shall provide to the City proof of workers' compensation coverage for all its employees who are to work on project(s) undertaken pursuant to this Agreement. The Company's coverage shall be under the Wyoming Workers' Safety and Compensation program, if statutorily required, or such workers' compensation insurance as appropriate. The Company's insurance shall include Company's liability coverage, in an amount not less than one million dollars (\$1,000,000.00) per employee for each accident and disease. The Company shall also supply to the City proof of workers' compensation and employer's liability insurance on any subcontractor before allowing that subcontractor on the job site.
 - ii. Commercial General Liability Insurance. The Company shall provide coverage, during the entire term of this Agreement, against claims arising out of bodily injury, death, damage to or destruction of the property of others, including loss of use thereof, and including underground collapse and explosion, and products and completed operations, in an amount not less than one million dollars (\$1,000,000.00) per occurrence and two million dollars (\$2,000,000.00) general aggregate.
 - iii. Business Automobile Liability. The Company shall provide and maintain, during the entire term of this Agreement, automobile liability insurance in an amount not less than one million dollars (\$1,000,000.00) per occurrence.

- iv. All policies required under this Agreement shall be in effect for the duration of this Agreement. All policies shall be primary and not contributory, but only with respect to claims resulting from the Company's negligent acts or willful misconduct. Company shall pay the premiums on all insurance policies, and Company's insurers will provide at least thirty (30) days prior written notice to the City of any cancellation or non-renewal of coverage.
- v. City as Additional Insured. All insurance policies required by this Agreement, except workers' compensation, shall include the City as an additional insured, and shall contain a waiver of subrogation against the City, its agents and employees. Company shall provide a copy of an endorsement providing this coverage prior to beginning any work under this Agreement.
- vi. City's Right to Reject. The City reserves the right to reject a certificate of insurance if the Company's insurance company is widely regarded in the insurance industry as financially unstable, provided, however, the City will have no right to reject such certificate if the Company's insurance company has a minimum A.M. Best rating of A- (excellent).
- vii. Subcontractors. The insurance requirements set out above apply to all subcontractors. It is the Company's responsibility to ensure that its subcontractors meet these insurance requirements. The City has the right to review the Certificates of any and all subcontractors used by the Company.
- n. Severability. Should any portion of this Agreement be judicially determined to be illegal or unenforceable, the remainder of the Agreement shall continue in full force and effect, and either party may renegotiate the terms affected by the severance.
- o. Governmental Immunity. The City does not waive governmental immunity by entering into this Agreement and specifically retains all immunities and defenses available to them pursuant to Wyo. Stat. §§ 1-39-101 - 121 and all other applicable law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be construed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental immunity shall be construed in favor of governmental immunity.
- p. Taxes. The Company shall pay all taxes and other such amounts required by federal, state and local law including, but not limited to, federal and social security taxes, workers' compensation, unemployment insurance and sales taxes.
- q. Termination of Agreement. This Agreement may be terminated by the City if the Company fails to materially perform in accordance with the terms of this Agreement. Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement.

- r. Third Party Beneficiary Rights. The parties do not intend to create in any other individual or entity the status of third-party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties and obligations contained in this Agreement shall operate only between the parties to this Agreement and shall inure solely to the benefit of the parties to this Agreement. The provisions of this Agreement are intended only to assist the parties in determining and performing their obligations under this Agreement.
- s. Titles Not Controlling. Titles of paragraphs are for reference only and shall not be used to construe the language in this Agreement.
- t. Waiver. The waiver of any breach of any term or condition in this Agreement shall not be deemed a waiver of any prior or subsequent breach. Failure to object to a breach shall not constitute a waiver.
- u. Counterparts. This Agreement may be executed in several counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same Agreement. The City and the Company agree that an electronic copy of a signed signature page of a counterpart shall evidence and constitute valid execution of this Agreement and shall be binding on a party to the same extent as the original signature counterpart copy. This Agreement may be accepted and signed in electronic form (e.g., by an electronic or digital signature or other means of demonstrating assent) and each party's electronic acceptance and signature will be deemed binding between the parties. Each party acknowledges and agrees it will not contest the validity or enforceability of this Agreement, including under any applicable statute of frauds, because it was accepted and/or signed in electronic form. Electronic records of a party when produced in hard copy form shall constitute business records and shall have the same validity as any other generally recognized business records.

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8. Signatures. The parties to this Agreement, either personally or through their duly authorized representatives, have executed this Agreement on the dates set out below, and certify that they have ready, understood and agreed to the terms and conditions of this Agreement.

CITY OF CHEYENNE

Date: _____
(SEAL)

By: _____
Patrick J. Collins, Mayor

Attest: _____
Kristina F. Jones, City Clerk

VIAERO FIBER NETWORKS, LLC

By: _____
(Signature)

Print Name: _____

Title: _____